

1 ENGROSSED SENATE AMENDMENT
TO

2 ENGROSSED HOUSE
3 BILL NO. 4440

By: Hilbert and Lepak of the
House

4 and

5 Paxton of the Senate

6
7 An Act relating to public health and safety;
8 ordering a legislative referendum pursuant to the
9 Oklahoma Constitution to amend the Oklahoma
10 Constitution by repealing Sections 1, 2, 3 and 4 of
11 Article XXV-A; ordering a legislative referendum;
12 providing for enactment of statutes related to
13 Medicaid and Medicaid expansion; defining terms;
14 requiring certain medical services be made available
15 to certain persons; imposing duty on Oklahoma Health
16 Care Authority; providing ballot title; ordering a
17 special election; and directing filing.

18
19 AMENDMENT NO. 1. Page 1, strike the title, enacting clause and
20 entire bill and insert

21
22 "An Act relating to the state Medicaid program;
23 directing the Secretary of State to refer to the
24 people for their approval or rejection a proposed
amendment to Section 2 of Article XXV-A of the
Oklahoma Constitution; removing prohibition for
imposing certain eligibility restrictions; directing
the Secretary of State to refer to the people for
their approval or rejection a proposed amendment to
repeal Sections 1, 2, 3, and 4 of Article XXV-A of
the Oklahoma Constitution, which relate to Medicaid
expansion; making repealers contingent upon certain
federal action; ordering a legislative referendum;
defining terms; requiring state to provide certain
medical assistance; requiring Oklahoma Health Care
Authority to maximize certain federal funding; making
provisions contingent upon certain federal action;

1 providing ballot title; providing for codification;
2 and directing filing.

3 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

4 SECTION 1. The Secretary of State shall refer to the people for
5 their approval or rejection, as and in the manner provided by law, a
6 proposed amendment to Section 2 of Article XXV-A of the Oklahoma
7 Constitution to read as follows:

8 Section 2. ~~A.~~ In addition to those otherwise eligible for
9 medical assistance under Oklahoma's Medicaid program, the State
10 shall provide medical assistance under Oklahoma's Medicaid program
11 to Low Income Adults.

12 ~~B. No greater or additional burdens or restrictions on~~
13 ~~eligibility or enrollment shall be imposed on persons eligible for~~
14 ~~medical assistance pursuant to this Article than on any other~~
15 ~~population eligible for medical assistance under Oklahoma's Medicaid~~
16 ~~program.~~

17 SECTION 2. The Secretary of State shall refer to the people for
18 their approval or rejection, as and in the manner provided by law, a
19 proposed amendment to repeal Sections 1, 2, 3, and 4 of Article XXV-
20 A of the Oklahoma Constitution. Such repeal will only occur if the
21 federal medical assistance percentage (FMAP) established under 42
22 U.S.C., Section 1396d(y) is reduced below ninety percent (90%).

23 SECTION 3. Pursuant to Section 3 of Article V of the Oklahoma
24 Constitution, there is hereby ordered the following legislative

1 referendum which shall be filed with the Secretary of State and
2 addressed to the Governor of the state, who shall submit the same to
3 the people for their approval or rejection at the next general
4 election.

5 SECTION 4. NEW LAW A new section of law to be codified
6 in the Oklahoma Statutes as Section 1011.26 of Title 56, unless
7 there is created a duplication in numbering, reads as follows:

8 A. As used in this section:

9 1. "Low-income adults" refers to those individuals over
10 eighteen (18) years of age and under sixty-five (65) years of age
11 whose income does not exceed one hundred thirty-three percent (133%)
12 of the federal poverty level, as described by and using the income
13 methodology provided in the federal Medicaid statute at 42 U.S.C.,
14 Section 1396a(a)(10)(A)(i)(VIII), and who meet applicable
15 nonfinancial eligibility conditions for Medicaid under 42 C.F.R.,
16 Part 435, Subpart E;

17 2. "Medical assistance" means payment of part or all of the
18 cost of the care and services, or the care and services themselves,
19 or both, as provided in the federal Medicaid statute, 42 U.S.C.,
20 Section 1396 et seq.; and

21 3. "Oklahoma Health Care Authority" refers to the single state
22 agency responsible for administering the state Medicaid program
23 pursuant to 42 U.S.C., Section 1396a(a)(5).
24

1 B. In addition to those otherwise eligible for medical
2 assistance under the state Medicaid program, the state shall provide
3 medical assistance under the state Medicaid program to low-income
4 adults.

5 C. The Oklahoma Health Care Authority shall take all actions
6 necessary to maximize federal financial participation in funding
7 medical assistance pursuant to this section.

8 D. The provisions of this section shall only become effective
9 if the federal medical assistance percentage (FMAP) established
10 under 42 U.S.C., Section 1396d(y) is reduced below ninety percent
11 (90%).

12 SECTION 5. The proposed Constitutional amendment as set forth
13 in SECTION 2 of this act and the statutory provisions as set forth
14 in SECTION 4 of this act shall only become effective if the federal
15 medical assistance percentage (FMAP) established under 42 U.S.C.,
16 Section 1396d(y) is reduced below ninety percent (90%).

17 SECTION 6. The Ballot Title for the proposed Constitutional
18 amendments as set forth in SECTIONS 1 and 2 of this act and the
19 legislative referendum as ordered in SECTION 3 of this act and as
20 set forth in SECTION 4 of this act shall be in the following form:

21 BALLOT TITLE

22 Legislative Referendum No. _____ State Question No. _____

23 THE GIST OF THE PROPOSITION IS AS FOLLOWS:
24

1 This measure amends Section 2 of Article 25-A of the Oklahoma
2 Constitution. It would remove the prohibition against enacting
3 additional restrictions on eligibility for Medicaid.

4 Additionally, if federal funding for the Medicaid expansion
5 population drops below 90%, this measure will repeal Sections 1,
6 2, 3, and 4 of Article 25-A of the Oklahoma Constitution and
7 will enact substantially the same language related to Medicaid
8 expansion from the repealed constitutional provisions into the
9 Oklahoma Statutes. The statutes could be amended, repealed, or
10 otherwise modified by the Legislature pursuant to the same
11 procedures that allow enactment of laws during any regular or
12 extraordinary session of the Legislature.

13 SHALL THE PROPOSAL BE APPROVED?

14 FOR THE PROPOSAL — YES _____

15 AGAINST THE PROPOSAL — NO _____

16 SECTION 7. The Chief Clerk of the House of Representatives
17 shall, immediately after the passage of this act, prepare and file
18 one copy thereof, including the Ballot Title set forth in SECTION 6
19 hereof, with the Secretary of State and one copy with the Attorney
20 General."

1 Passed the Senate the 14th day of April, 2026.

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3 _____
4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

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8 _____
9 Presiding Officer of the House
10 of Representatives

1 ENGROSSED HOUSE
2 BILL NO. 4440

By: Hilbert and Lepak of the
House

3 and

4 Paxton of the Senate
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7 An Act relating to public health and safety;
8 ordering a legislative referendum pursuant to the
9 Oklahoma Constitution to amend the Oklahoma
10 Constitution by repealing Sections 1, 2, 3 and 4 of
11 Article XXV-A; ordering a legislative referendum;
12 providing for enactment of statutes
13 related to Medicaid and Medicaid expansion; defining
14 terms; requiring certain medical services be made
15 available to certain persons; imposing duty on
16 Oklahoma Health Care Authority; providing ballot
17 title; ordering a special election; and directing
18 filing.
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BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 8. The Secretary of State shall refer to the people for
their approval or rejection, as and in the manner provided by law,
the following proposed amendment to the Constitution of the State of
Oklahoma by repealing Sections 1, 2, 3 and 4 of Article XXV-A of the
Oklahoma Constitution.

SECTION 9. Pursuant to Section 3 of Article V of the Oklahoma
Constitution, there is hereby ordered the following legislative
referendum which shall be filed with the Secretary of State and

1 addressed to the Governor of the state, who shall submit the same to
2 the people for their approval or rejection at the election to be
3 conducted on August 25, 2026.

4 SECTION 10. NEW LAW A new section of law to be codified
5 in the Oklahoma Statutes as Section 7401 of Title 63, unless there
6 is created a duplication in numbering, reads as follows:

7 As used in this act:

8 1. "Centers for Medicare and Medicaid Services" or "CMS" refers
9 to the agency responsible for administering the Medicaid program at
10 the federal level, including review and approval of State Plan
11 Amendments;

12 2. "Low-income adults" refers to those individuals over age
13 eighteen (18) and under age sixty-five (65) whose income does not
14 exceed one hundred thirty-three percent (133%) of the federal
15 poverty level, as described by and using the income methodology
16 provided in the federal Medicaid statute at 42 U.S.C., Section
17 1396a(a)(10)(A)(i)(VIII), and who meet applicable nonfinancial
18 eligibility conditions for Medicaid under 42 CFR, Part 435, Subpart
19 E;

20 3. "Medical assistance" means payment of part or all of the
21 cost of the care and services, or the care and services themselves,
22 or both, as provided in the federal Medicaid statute, 42 U.S.C.
23 Section 1396 et seq.;

1 4. "Oklahoma Health Care Authority" refers to the single state
2 agency responsible for administering the Oklahoma Medicaid program
3 pursuant to 42 U.S.C., Section 1396a(a)(5); and

4 5. "State Plan Amendment" refers to the document(s) the state
5 submits to the Centers for Medicare and Medicaid Services for review
6 and approval before making a change to its program policies,
7 including setting forth the groups of individuals to be eligible for
8 medical assistance.

9 SECTION 11. NEW LAW A new section of law to be codified
10 in the Oklahoma Statutes as Section 7402 of Title 63, unless there
11 is created a duplication in numbering, reads as follows:

12 In addition to those otherwise eligible for medical assistance
13 under Oklahoma's Medicaid program, the state shall provide medical
14 assistance under Oklahoma's Medicaid program to low-income adults.

15 SECTION 12. NEW LAW A new section of law to be codified
16 in the Oklahoma Statutes as Section 7403 of Title 63, unless there
17 is created a duplication in numbering, reads as follows:

18 The Oklahoma Health Care Authority shall take all actions
19 necessary to maximize federal financial participation in funding
20 medical assistance pursuant to this act.

21 SECTION 13. The Ballot Title for the proposed Constitutional
22 amendment repealing Sections 1, 2, 3 and 4 of Article XXV-A of the
23 Oklahoma Constitution and the enactment of statutory provisions
24

1 related to Medicaid as set forth in Sections 2 through 5 of this
2 measure shall be in the following form:

3 BALLOT TITLE

4 Legislative Referendum No. _____ State Question No. _____

5 THE GIST OF THE PROPOSITION IS AS FOLLOWS:

6 This measure proposes an amendment to the Oklahoma Constitution
7 by repealing Sections 1, 2, 3 and 4 of Article 25-A, and it also
8 proposes the enactment of substantially the same language from
9 those constitutional sections as statutes. If this question
10 passes, then the sections from the Oklahoma Constitution would
11 be repealed, but the substantive language related to Medicaid
12 from the constitutional sections would become enacted as
13 statutes of the State of Oklahoma. The statutes could be
14 amended, repealed, or otherwise modified by the Legislature
15 pursuant to the same procedures that allow enactment of laws
16 during any regular or extraordinary session of the Legislature.

17 SHALL THE PROPOSAL BE APPROVED?

18 FOR THE PROPOSAL — YES _____

19 AGAINST THE PROPOSAL — NO _____

20 SECTION 14. A special election is hereby ordered to be held
21 throughout the State of Oklahoma on the date of August 25, 2026, at
22 which time the proposed amendment to the Constitution of the State
23 of Oklahoma, as set forth in SECTION 1 of this act, shall be

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1 submitted to the people of Oklahoma for their approval or rejection
2 as and in the manner provided by law.

3 SECTION 15. The Chief Clerk of the House of Representatives,
4 immediately after the passage of this measure, shall prepare and
5 file one copy thereof, including the Ballot Title set forth in
6 SECTION 6 hereof, with the Secretary of State and one copy with the
7 Attorney General.

8 Passed the House of Representatives the 25th day of March, 2026.

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Presiding Officer of the House
of Representatives

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13 Passed the Senate the ____ day of _____, 2026.

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Presiding Officer of the Senate

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